

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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RANDY SWINSON,

Plaintiff,

-against-

**SECOND AMENDED
COMPLAINT**

08 CV 5921 (LAK) (DFE)

THE CITY OF NEW YORK, DETECTIVE SAED RABAH,
Shield No.07604, DETECTIVE ROBERT NUMSSEN,
Shield No. 06300; DETECTIVE SHAWN GORDON,
Shield No. 06155, DETECTIVE ERIK RUIZ, Shield No.06476,
DETECTIVE FREDERICK ORTIZ, Shield No. 29004,
SERGEANT FRANK FITZGERALD, Tax No. 887261
and JOHN or JANE DOES Nos. 1-10, whose identities are not
known to plaintiff at this time but being the police officers,
detectives, sergeants and/or lieutenants who arrested and/or
assaulted Plaintiff Randy Swinson and violated his civil rights,
the individual defendants sued individually and in
their official capacities,

ECF Case

Jury Trial Demanded

Defendants.
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Plaintiff, RANDY SWINSON, by his attorneys, ASHER & ASSOCIATES, P.C., as
and for his Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. This is a civil rights action for damages in which plaintiff seeks relief for the
violation of his rights secured by 42 U.S.C. §§1983 and 1985 (3), and the First, Fourth, Fifth,
Sixth and Fourteenth Amendments to the Constitution and laws of the United States and the
laws of the State of New York. The claims arise from an incident which occurred on or about
April 15, 2008. During the incident the City of New York and members of the New York
City Police Department ("NYPD") subjected plaintiff RANDY SWINSON to, among other
things, excessive force, unlawful search, unlawful strip search, unconstitutional conditions of

confinement, assault and battery, denial of medical care, intentional and negligent infliction of emotional distress, retaliation for free speech, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other and further relief as the Court deems just and proper.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§1983 and 1985 (3) in conjunction with the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and the Constitutional statutory and common laws of New York State.

3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and Constitutional provisions and pursuant to 28 U.S.C. §§1331 and 1343, this being an action seeking to redress for the violation of the plaintiff's Constitutional and civil rights. The Court also has jurisdiction over the state law claims pursuant to 28 U.S.C. §1367.

4. Venue is proper in the United States District Court for the Southern District of New York under 28 U.S.C. §1391(b), in that the incident arose in the County and City of New York.

5. Plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

6. At all relevant times, plaintiff RANDY SWINSON, was and still is a resident of the County of New York, City and State of New York.

7. At all relevant times, defendant THE CITY OF NEW YORK was and is a

municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs other named defendants.

8. At all relevant times, defendant DETECTIVE SAED RABAH, Shield No.07604, was a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, DETECTIVE SAED RABAH was assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. At all relevant times, defendant DETECTIVE ROBERT NUMSSEN, Shield No. 06300, was a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, DETECTIVE ROBERT NUMSSEN was assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

10. At all relevant times, defendant DETECTIVE SHAWN GORDON, Shield No. 06155, was a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, DETECTIVE SHAWN GORDON was assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

11. At all relevant times, defendant DETECTIVE ERIK RUIZ, Shield No.06476, was a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, DETECTIVE ERIK RUIZ was assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this

complaint. He is being sued in both his individual and official capacities.

12. At all relevant times, defendant DETECTIVE FREDERICK ORTIZ, Shield No. 29004, was a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, DETECTIVE FREDERICK ORTIZ was assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

13. At all relevant times, defendant SERGEANT FRANK FITZGERALD, Tax No. 887261, was a police officer employed by the New York City Police Department, and acting under the color of law. Upon information and belief, SERGEANT FRANK FITZGERALD was assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

14. At all relevant times, defendants "JOHN OR JANE DOES", FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, were police officers employed by the New York City Police Department, and acting under the color of law. Upon information and belief, "JOHN OR JANE DOES", FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, were assigned to the 6th Precinct of the New York City Police Department at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

15. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of

the New York City Police Department and New York City, pursuant to their authority as employees, servants and agents of the New York City Police Department, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

16. At all relevant times, the defendant, The City of New York was responsible for the training of its police officers, and more particularly, defendants DETECTIVE SAED RABAH, DETECTIVE ROBERT NUMSSEN, DETECTIVE SHAWN GORDON, DETECTIVE ERIK RUIZ, DETECTIVE FREDRICK ORTIZ, SERGEANT FRANK FITZGERALD and "JOHN OR JANE DOES", FICTITIOUS NAMES INTENDED TO BE POLICE OFFICERS OF THE NEW YORK CITY POLICE DEPARTMENT, the unknown police officers whose identity plaintiff intends to discover.

17. At all relevant times, the defendant CITY OF NEW YORK was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the New York City Police Department.

18. At all times mentioned herein, the defendant CITY OF NEW YORK knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff RANDY SWINSON.

19. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff RANDY SWINSON.

FACTS

20. The following is a summary set forth for the purpose of demonstrating and providing notice of plaintiff's claims against the defendants. Plaintiff has not set forth each and every fact concerning the incident(s) described below.

21. On April 15, 2008, without justification or any legal right, all named defendant police officers at times acting in concert and in times acting independently, committed the following illegal acts against plaintiff.

22. On April 15, 2008 at approximately 3:15 p.m., in the first floor men's room of the 6th Precinct, 233 West 10th Street, New York, New York, without justification or any legal right, plaintiff Randy Swinson was jumped by all named defendant police officers sustaining injuries to the head, back, arms, wrists and hands.

23. Defendant Detective Rabah verbally threatened plaintiff and denied plaintiff medical attention for his injuries.

24. Defendant Detective Numssen punched the plaintiff repeatedly about the head and chest.

25. Defendant Detective Gordon stabbed plaintiff in his right hand with the handcuff key and using excessive force dragged plaintiff to his feet by his handcuffed wrists.

26. Defendant Detective Ruiz kicked and punched plaintiff in the chest and threatened him "not to seek medical treatment."

27. Defendant Detective Ortiz punched and kicked plaintiff in and about his body and threatened him "not to seek medical treatment."

28. Defendant Sergeant Fitzgerald heard plaintiff's screams, but ignored the situation and failed to intervene and assist plaintiff.

29. Defendant Sergeant Fitzgerald threatened plaintiff "to keep quiet" and "not seek

medical attention” or he would charge plaintiff with additional offenses.

30. At a public park and in the bathroom of the 6th Precinct, the defendants, at times acting in concert and at times acting independently, subjected plaintiff to a public strip search and was without cause or justification.

31. Defendant Detective Numssen subjected plaintiff to a non-private anal cavity search and probed his rectum manually causing him to defecate blood.

32. Defendant Detective Gordon subjected plaintiff to a non-private anal cavity search and probed his rectum manually causing him to defecate blood.

33. The strip and cavity searches produced no weapons, contraband or narcotics.

34. Plaintiff was subjected to the NYPD’s unlawful policy of strip searching individuals in public regardless of reasonable suspicion or probable cause at the 6th Precinct. At the time stated above plaintiff was forced to expose his private areas in front of other NYPD employees and/or private individuals.

35. The fact that the above-described strip and cavity searches of plaintiff were carried out in a non-private manner is sufficient in and of itself to violate the Constitution. It is well established that, even where there is justification for a strip search, the search must be conducted in a reasonable manner. A strip search is unreasonable if it is carried out in a non-private manner and in the presence of nonessential people, such as other detainees or the general public.

36. The aforesaid events are not an isolated incident. The NYPD and the City of New York have been aware (from lawsuits, notices of claims and complaints filed with the Civilian Complaint Review Board) that many of its officers are insufficiently trained on the proper way to use force, search arrestees and treat innocent and/or uninvolved individuals

who are found at an incident scene and/or investigation location. The NYPD and the City of New York are further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, the NYPD and the City of New York have failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

37. Moreover, the NYPD and the City of New York were aware prior to the incident that these named defendant officers lacked the objectivity, temperament, maturity, discretion and disposition to be employed as police officers. Despite such notice, the NYPD and the City of New York have retained these officers and failed to adequately train and supervise them.

38. To date, as a direct result and proximate result of all defendants' actions, plaintiff Randy Swinson has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, shame, degradation, humiliation, indignity, stress, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

39. Defendant CITY OF NEW YORK, as a matter of policy and practice, has with deliberate indifference failed to adequately discipline, train or otherwise direct police officers, including the defendant police officers, with regard to the rights of residents, citizens and visitors to the United States of America thereby causing the defendant officers in this case to engage in the unlawful conduct described above.

40. Defendant CITY OF NEW YORK, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers, including the defendants in this case, for violations of the constitutional rights of the persons within its

domain, thereby causing police, including defendants in this case, to engage in the unlawful conduct described above.

41. Defendant CITY OF NEW YORK, in its policies and practices, has with deliberate indifference, failed to follow procedures for supervising and removing, when appropriate, unstable, malicious, violent, abusive, dishonest and biased police officers from their duties.

42. Defendant CITY OF NEW YORK and the NYPD, knew or should have known that prior to April 15, 2008, the use of excessive force, the commission of other malicious, violent and inappropriate unlawful acts by defendant officers were occurring, in that it is believed that there may have been complaints of such unlawful conduct by these particular officers, but defendant CITY OF NEW YORK failed to take appropriate steps to eliminate such unlawful acts.

CONDITIONS PRECEDENT

43. On or about May 22, 2008, a Notice of Claim, verified by RANDY SWINSON, was served, as required by General Municipal Law 50-e, on the Comptroller of defendant the City of New York; said Notice was filed within the 90 days after the causes of action accrued.

44. More than 30 days have elapsed since said Notices of Claim were filed, and defendants, The City of New York and The New York City Police Department, have refused to pay or adjust these claims.

45. More than Ninety (90) days elapsed after the service of the Notice of Claim without a demand for a hearing pursuant to General Municipal Law 50-h.

46. The plaintiff has duly complied with all of the conditions precedent to the commencement of this cause of action under the circumstances as set forth above. This action is commenced within one year and 90 days after the claims accrued.

FEDERAL AND STATE CLAIMS
AGAINST THE INDIVIDUAL DEFENDANTS

47. Plaintiff repeats, realleges and incorporates in full all the foregoing paragraphs as if the same were fully set forth at length herein.

48. The conduct of defendant officers, as described herein, amounted to excessive force, unlawful and unconstitutional search and seizure, denial of medical care, assault and battery, intentional and negligent infliction of emotional distress, retaliation for free speech, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees and implementation and continuation of an unlawful municipal policy, practice and custom.

49. The conduct of the defendant officers, as described herein, violated plaintiff's rights under 42 U.S.C. §§1983 and 1985 (3), and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, by committing unlawful and unconstitutional search and seizure, denial of medical care, assault and battery, intentional and negligent infliction of emotional distress, retaliation for free speech, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees and implementation and continuation of an unlawful municipal policy, practice and custom.

50. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers. Said defendants acted willfully, knowingly and with the specific intent to deprive plaintiff of his rights secured by 42 U.S.C. §§1983 and 1985 (3), and the First, Fourth, Fifth,

Sixth and Fourteenth Amendments to the United States Constitution.

51. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation and financial loss.

52. The plaintiff is also entitled to receive punitive damages because defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

FEDERAL CLAIMS
AGAINST THE CITY OF NEW YORK

53. Plaintiff repeats, realleges and incorporates in full all the foregoing paragraphs as if the same were fully set forth at length herein.

54. The City of New York directly caused the constitutional violations suffered by plaintiff.

55. Upon information and belief, the City of New York was aware from notices of claim, lawsuits, complaints and from NYPD's own observations, that the officers involved in the present case were unfit to be officers and that it was highly likely that they would commit the acts alleged in the present case.

56. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, retrain, supervise, discipline, monitor and improperly utilized and retained these officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can harass and violate citizens without consequence. Indeed, when citizens file complaints against officers, the City of New York has a practice of failing to

substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible and the account given by the officer is unworthy of belief.

57. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. §§1983 and 1985 (3), and the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

PRAYER FOR RELIEF

WHEREFORE RANDY SWINSON demands judgment against defendants as follows:

- (a) full and fair compensatory damages in an amount to be determined by a jury including but not limited to specific damages,
- (b) punitive damages as allowed by law in an amount to be determined by a jury;
- (c) reasonable attorney's fees and other costs and disbursements of this action;
- (d) interest on all awards as allowed by law; and
- (e) such other and further relief as appears just and proper.

A TRIAL BY JURY IS DEMANDED

Dated: New York, New York
August 21, 2009


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